

UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLUMBIA

NIKKI L. JOHNSTON,

Plaintiff,

v.

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) Civil Action No. 22-1284(CKK)

WHALA B. SINGH and
UNITED STATES OF AMERICA

Defendants.

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PLAINTIFF'S FIRST AMENDED COMPLAINT

Plaintiff hereby files her First Amended Complaint pursuant to the Court's order of May 18, 2022.

A. Parties

1. Plaintiff, Nikki L. Johnston, is an individual that is a citizen of the State of Arkansas.

2. Defendant, Whala B. Singh, is an individual and a citizen of the State of Virginia and Defendant, the United States of America, was substituted for the tortfeasor Eric Radwick by the United States Attorney's Office, after he was sued and served in his individual capacity.

B. Jurisdiction

3. The Court has jurisdiction over the lawsuit under 28 U.S.C. §1346(b) because the suit involves a claim against the United States for personal injury caused by a

government employee while acting within the scope of his employment, as alleged by the United States.

C. Venue

4. Venue is proper in this district under 28 U.S.C. §1402(b) because plaintiff resides in this district. This case involves claims arising out of an automobile accident in Washington, D.C., on February 3, 2020. Plaintiff was a passenger in a taxi operated by Defendant Whala B. Singh as he approached the intersection of Independence Avenue and 12th Street, N.W. At the same time, a vehicle operated by Defendant Eric Radwick entered the same intersection and collided.

D. Conditions Precedent

5. Plaintiff timely presented this claim in writing to the United States Secret Service by certified mail, return receipt on January 24, 2022. The United States Secret Service has failed to respond in anyway or make a final disposition of the claim.

E. Facts

6. On February 3, 2020, plaintiff suffered severe and permanent personal injuries when the vehicle she was a passenger in while operated by Defendant Singh collided with the vehicle being operated by Mr. Eric Donald Radwick on behalf of the United States Government, its employee acting in the course and scope of employment.

F. Federal Tort Claims Act

7. The acts and omissions of Mr. Radwick was negligent. Specifically, Mr. Radwick is alleged to have been an employee of defendant United States and was acting in the course and scope of his office or employment and had a duty to exercise ordinary

care and operated his motor vehicle in a reasonably and prudently manner. Under the laws of the District of Columbia, a private person would be liable to plaintiff for the negligent acts and omissions of Mr. Radwick. Under 28 U.S.C. §2674, the United States is liable to plaintiff for her damages resulting from the personal injuries described below. *See 28 U.S.C. §1346(b).*

G. Damages

8. As a direct and proximate result of the negligent acts of Defendant Singh and/or in combination with the negligent acts of Defendant United States by and through Mr. Radwick, plaintiff suffered the following injuries and damages:

- a. Physical pain and mental anguish in the past and future.
- b. Lost earnings.
- c. Loss of earning capacity.
- d. Disfigurement in the past and future.
- e. Physical impairment in the past and future.
- f. Medical expenses in the past and future.
- g. Loss of consortium in the past and future.

H. Prayer

9. For these reasons, plaintiff asks for judgment against defendant Singh and defendant United States for the following:

- a. Fair and reasonable actual damages as determined by a jury.
- b. Costs of suit.
- c. Prejudgment and postjudgment interest.

- d. All other relief the Court deems appropriate.

By: /s/ Duane O. King.

Duane O. King, DC Bar # 482617

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Washington, DC 20003

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Counsel for Plaintiff Nikki L. Johnston

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 6th day of June, 2022, I served a copy of the foregoing Plaintiff's First Amended Complaint by filing the document with the Court's CM/ECF system and also causing a copy of these documents to be sent via First Class Mail, postage prepaid, to the following addresses:

Paul Cirino
United States Attorney's Office
601 D St., NW
Washington, DC 20530

Whala B. Singh
7346 Ardlgass Drive
Lorton, VA 22079

/s/ Duane O. King
Duane O. King